civilisational societies, such as Bharat, that were linked internally by millennia of coexistence wherein no single marker, such as ethnicity or language or the Christian concept of religion, could be used to make sense of their oneness, which was more a lived reality. In such societies, owing to the pressure of nation-statehood, every marker of identity, real or artificial, became the foundation for identifying the in-group and the out-group, thereby creating multiple centrifugal forces that led to competitive nationalism. This is not to say that the idea of in- and out-groups was absent prior to the advent of the European coloniser. However, indigenous societies had certainly evolved processes and mechanisms through traditions developed over ages to retain diverse individual as well as group identities, and yet coexist with others in relative harmony. The expectations that came with the imposition of a nation-statehood posed a unique challenge to their own conceptions of political unity, which they could not avoid or overcome given the Europeanised world they now existed in.

To overcome the fissiparous tendencies created by the imposition of nation-statehood, colonies upon achieving independence were forced to adopt legal mechanisms to preserve their integrity, the foremost of which was a constitution that was populated by Enlightened Europeanism. Naturally, over time, the constitution, which was initially intended to be a means to forge a nation-state and was a product of necessity, was elevated to the status of a religious document. In short, the means became an end in itself and, to make matters worse, thanks to the colonial values subscribed to by the constitutions of decolonised societies, the space for indigenous ways of life started shrinking once again. The only difference was that this time the political structure was helmed not by the European coloniser but by the colonialised native who was a new convert to constitutionalism, constitutional morality and ultimately Europeanism/Western-normativism. It is precisely for these reasons that constitutionalism and its coloniality warrant a closer look.

Coloniality/Modernity and ‘Enlightened’ Constitutionalism: The New True Religion of Former Colonies

From the history of the Protestant Reformation, the genesis and globalisation of the Westphalian civilisation and the Enlightenment discussed thus far, it is evident that these European milestones distinctly